

Court No. - 21

Case :- WRIT - C No. - 3476 of 2013

Petitioner :- Kamlesh Sisodiya

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Madan Mohan,P.S. Verma

Respondent Counsel :- C.S.C.,A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

On prayer made by Sri Amrit Lal Yadav, learned counsel for the respondent Nos. 2 and 3, the case is directed to be put-up as fresh on 18.2.2013 so as to enable Sri Amrit Lal Yadav to obtain instructions in the matter.

Order Date :- 22.1.2013

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Court No. - 29

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Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Madan Mohan,P.S. Verma

Respondent Counsel :- C.S.C.,A.L. Yadav

Hon'ble Sunil Ambwani,J.

Hon'ble Bharat Bhushan,J.

We have heard learned counsel for the petitioner. Sri A.L. Yadav appears for the respondent Nos. 2 and 3.

By this writ petition, the petitioner has prayed for a direction to the Executive Engineer, Electricity Distribution Division IInd, Dakshinanchal Vidyut Vitran Nigam Ltd, Agra (respondent No. 2) and Sub Divisional Officer, Electricity Distribution Division IInd, Dakshinanchal Vidyut Vitran Nigam Ltd Agra (respondent No.3), to consider and decide the application dated 17.06.2011 filed by the petitioner, for permanent disconnection of the electricity line of 7.5 KW under Tariff LMV 6 in village Guthara, Tehsil Sadabad, District Hathras, as expeditiously as possible.

Sri A.L. Yadav, appearing for the respondent Power Corporation informs the Court that a theft case was reported against the petitioner in which an assessment order has been passed, which has not been challenged. On the contrary, the petitioner has deposited part payment of theft amount of Rs.30,550/- on 30.09.2012. He submits that under clause 4.1.4 (g) of the U.P Electricity Supply Code 2005, permission for disconnection may be granted only after deposit of dues. Since the petitioner has not challenged the assessment order, in theft case, the entire assessment is to be treated as dues, and on depositing the same, the request of the petitioner for permanent disconnection can be considered

The writ petition is **disposed of** with directions that in case the petitioner deposits the assessment of electricity dues, including assessment on account of theft, the application of the petitioner for permanent connection be considered and decided by respondent No.2. In case the, the petitioner wants to object or challenge the assessment, on account of theft, the permanent disconnection will await the result of such objections or appeal. In the meantime, he will be required to pay regular bills.

Order Date :- 28.2.2013

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